



FORMAL RECORD OF THE DENIAL OF ACCESS TO JUSTICE AND ADMINISTRATIVE MALPRACTICE

1 message

Wilbur William Matthee <info@ethichawks.co.za>

Thu, 09 Apr 2026 at 17:00

To: Farzaana Ismail <FIsmail@judiciary.org.za>

Cc: RDavid@judiciary.org.za, ZMnye@judiciary.org.za, ssalie@sahrc.org.za, info@sahrc.org.za, vramaano@parliament.gov.za, smthonjeni@parliament.gov.za, enquiries@judiciary.org.za, Tsakani Soundy <TSoundy@judiciary.org.za>, " <NHanekom@judiciary.org.za>

Bcc: wilburmat@gmail.com <wilburmat@gmail.com>

Ms. Tsakani Soundy (Judiciary); Attention: The Office of the Chief Justice.

Madam,

I am writing this under conditions of extreme duress, homelessness, and financial destitution caused directly by my actions as a whistleblower in the public interest. This is no longer a request for assistance; it is a formal indictment of a miscarriage of justice occurring under your watch.

1. The Fact of the Obstruction

At 09:54 AM today, you confirmed in writing: "I have been informed that your matter was approved and a case number was issued". Despite this confirmation, and knowing my statutory 90-day deadline expires today, 9 April 2026, your office has withheld that case number. This silence is a functional denial of my Section 34 Constitutional Right to Access to Justice.

2. The Inhumanity of the "Gatekeeper"

I have spent my career as a Specialist Nurse, the very person society relies on in its darkest hours. I was a shift leader in the Resus and Trauma units at Mitchells Plain during the COVID-19 pandemic—showing up every day to protect the vulnerable until the virus claimed me too at the end. My profession dictates that even a rapist is treated with the same dignity and care as any other patient. I have never allowed bias or judgment to overwhelm my duty to provide individual care.

Yet, as I stand at the "doors of justice," I am met with a cold, administrative refusal to provide a helping hand. I am a carer turned patient, and the system is effectively "throwing me to the dogs".

3. Systemic Failure and Accountability

Since 5 March 2026, I have faced technical rejections and portal failures that are no fault of my own. I was forced to the High Court in a desperate attempt to be heard, only to have a whistleblower's case struck with punitive Scale C costs—furthering my destitution. My request for the audio for a urgent 42 rescission application also ignored by the Acting Chief Registrar of the High Court Ms Nicola Hanekom in Ms David inbox the silence continues.

Minister Mmamoloko Kubayi warned on 8 April 2026 that whistleblowers face "weak protections". Your office is currently proving her right. You are reducing a human life, and the safety of 1.9 million GEMS members I sought to protect, to a technicality.

4. Formal Notice of Liability

I place it on the record for the Chief Justice and the SAHRC: Should my mental health or physical safety decline further as a result of this orchestrated exclusion, the responsibility lies with the Registrar of the Labour Court as the High Court. I have acted with courage to remain alive and fight for myself when no one else would.

I demand the immediate release of the case number that you have already confirmed exists. The time for "rules" to supersede "humanity" has ended. Justice delayed is justice denied.

Sr. Wilbur William Matthee

Specialist Registered Nurse, BTech (Psych, Midw, Comm), PG Dip HSM (NQF 8)

Founder: EthicHawks (Forensic Governance and Compliance)

info@ethichawks.co.za



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